

Court No. - 39

Case :- WRIT - C No. - 4040 of 2016

Petitioner :- M/S Mb Rubber Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited & Another

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- Chandan Agarwal

Hon'ble Dilip Gupta,J.

Hon'ble Mukhtar Ahmad,J.

This petition seeks quashing of the demand notice dated 7 December 2015 that has been raised by the Executive Engineer, Pashchimanchal Vidyut Vitran Nigam Limited, Ghaziabad.

It is stated that when the load of the petitioner was enhanced on 12 December 2009 from 400 KVA to 600 KVA the petitioner was being constantly billed at the old CT ratio having multiplying factor 4 and not multiplying factor 6. The respondents have now issued the demand notice having multiplying factor of 6. In effect the petitioner disputes the accuracy of the bill.

Though number of submissions have been raised by the learned counsel for the petitioner to assail the bill including the submission that under Section 56(2) of the Electricity Code, 2003, no sum due from any consumer shall be recoverable after the period of two years from the date when sum became first due unless such sum has been shown continuously as recoverable as arrear of charges of electricity supplied and the licensee shall not cut off the supply of the electricity, Sri Chandan Agarwal, learned counsel appearing for respondent no. 2 points out that the petitioner has a statutory alternative remedy under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 as the accuracy of the bill can be challenged by the petitioner and the complaint is also required to be decided within seven days.

The petitioner does have a statutory alternative remedy under Clause 6.5 the Code.

However, learned counsel for the petitioner has submitted that pursuant to the demand notice, the electricity supply of the petitioner has also been disconnected on 29 January 2016 because of which the industry of the petitioner has been shut down.

Sri Chandan Agarwal, learned counsel for the respondent states that the electricity supply can be restored provided the petitioner

deposits portion of the amount when he files the complaint under Clause 6.5 of the Code.

Thus, while declining to entertain this petition on the ground of alternative remedy, we direct that in the event petitioner deposits an amount of Rupees One Crore with the respondent Corporation when he files a complaint as provided for under Clause 6.5 of the Code, the electricity supply of the petitioner shall be restored. The amount so deposited shall be subject to the order to be passed on the complaint filed by the petitioner.

The petition is, accordingly, disposed of.

Order Date :- 1.2.2016
M.A.Ansari

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)